



Ben Allen <allenbenjamins1@gmail.com>

Public Records Request

10 messages

Elizabeth Boone <eboone@leecountync.gov>

Fri, Sep 27, 2024 at 3:05 PM

To: "allenbenjamins1@gmail.com" <allenbenjamins1@gmail.com>

Mr. Allen,

In response to your public records request dated September 3, 2024:

Items 1, 2 and 3 are criminal investigation records under NCGS 132-1.4 and are not public records. However, you should have a copy or access to a copy of all discovery which was given to your attorney in your pending criminal matter related to this request.

Item 4 requests a Policing Technique Policy and the Sheriff's Department does not have a policy with this name.

Item 5 requests a timesheet which is a personnel record and is not a public record under NCGS 160A-168.

Sincerely,

Elizabeth Boone

Elizabeth Myrick Boone**Deputy County Attorney**

Lee County Government

408 Summit Drive | Sanford, NC 27330

919-718-4605 – Ext. 5455

www.leecountync.gov

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Ben Allen <allenbenjamins1@gmail.com>
To: Elizabeth Boone <eboone@leecountync.gov>

Fri, Sep 27, 2024 at 9:20 PM

Dear Ms. Boone,

Thank you for responding to my September 3, 2024, public records request.

I appreciate your time and attention to this matter. For my records, I would like to confirm that the items you are referencing align with my original request.

Could you provide me with a copy of my initial submission? This will help ensure we are referring to the same document and items.

I understand the sensitive nature of some of the requested information and the legal constraints you've outlined. Your clarification regarding the unavailability of certain records due to their classification as criminal investigation records, personnel records, or non-existent policies is helpful.

Thank you again for your assistance in this matter. I look forward to receiving a copy of my original request for my records.

Sincerely,
Ben Allen
[Quoted text hidden]

Ben Allen <allenbenjamins1@gmail.com>
To: Elizabeth Boone <eboone@leecountync.gov>

Fri, Sep 27, 2024 at 11:08 PM

Dear Ms. Boone,

Thank you for your response to my previous request. When checking my records, I discovered that additional information would be required to facilitate my original request. I have created some confusion by trying to be succinct. I apologize and respectfully submit a refined request for records.

I want to clarify that my request for public records dated **September 3, 2024**,

Items 1-3:

I understand criminal investigation records are exempt under NCGS § 132-1.4. However, I would like to clarify that my request pertains to the following non-investigative public information:

Basic call logs, including date and time of call, location, nature of the call, and time of response **from October 18, 2019, to October 20, 2019**. I will accept redacted records to remove any investigative or confidential details. These basic administrative records are separate from the current file I have received from my attorney, and due to the open nature of the records, the accumulation of attorney hours is optional.

Item 4:

I want to clarify that my request for "policing techniques and procedures," dated **September 3, 2024**, was intended to cover any policies, guidelines, or manuals detailing the standard operating procedures, protocols, and techniques the Lee County Sheriff's Office uses in training or defining conduct and procedure when carrying out law enforcement activities.

This would include, but is not limited to:
Use of force policies

Investigative procedures

Arrest procedures

Search and seizure protocols

Training manuals or guidelines on how officers are instructed to handle various situations

I will accept them in any format if multiple documents address these topics. If the request is too voluminous, the policies, guidelines, procedures, protocols, techniques, or manuals relating to investigating procedures are the priority, and arrest procedures are secondary. Including only materials covering the previously defined topics of investigative and arrest procedures will be acceptable, and I can submit open records requests for the remaining documents, such as Use of force policies and search/seizure protocols, at a later date.

Item 5:

I am clarifying my request for payroll records for all Lee County Sheriff's Office employees, specifically **from October 18, 2019, to October 20, 2019**, per North Carolina's Public Records Law.

I understand that certain personnel information is confidential under North Carolina General Statute (NCGS) § 160A-168. However, according to this statute, certain information is public, including "current salary," which is defined as encompassing "pay, benefits, incentives, bonuses, and deferred and all other forms of compensation paid by the employing entity" [NCGS § 160A-168(b)(7)]. Therefore, payroll information for the requested dates should be subject to public access as it constitutes financial information rather than personnel records.

Additionally, I request that any personnel or sensitive information protected by NCGS § 160A-168(c), such as social security numbers, leave records, or other personal identifiers, be redacted as necessary. I cite NCGS § 132-1.10, which protects personal identifying information but allows access to public records with such information redacted.

To summarize, I am requesting payroll records, including hours worked and compensation (excluding confidential information), for October 18 through October 20, 2019. If any portion of these records contains confidential information, I request that this information be redacted and that the remaining financial information be provided in accordance with NCGS § 132-6(c).

All reasonable fees for this request will be paid with prior approval.

- If a portion of this request is denied, please specify which part is being denied and cite the specific General Schedule or Local exemption that applies. Still, provide the non-exempt portions that are approved for release.
- If the exemption is discretionary, please exercise the agency's discretion to release the information.
- Willing to receive in digital format to reduce duplication effort and cost.

Thank you for your time and attention to this request. Please feel free to contact me if further clarification is needed.

Sincerely,
Benjamin Allen

On Fri, Sep 27, 2024 at 3:05 PM Elizabeth Boone <eboone@leecountync.gov> wrote:

[Quoted text hidden]

Elizabeth Boone <eboone@leecountync.gov>
To: Ben Allen <allenbenjamins1@gmail.com>

Mon, Sep 30, 2024 at 7:21 AM

Attached is your original request.

Sincerely,

Elizabeth Boone

Elizabeth Myrick Boone**Deputy County Attorney**

Lee County Government

408 Summit Drive | Sanford, NC 27330

919-718-4605 – Ext. 5455

www.leecountync.gov

From: Ben Allen <allenbenjamins1@gmail.com>
Sent: Friday, September 27, 2024 10:21 PM
To: Elizabeth Boone <eboone@leecountync.gov>
Subject: Re: Public Records Request

CAUTION: External Email. Do not click links or open attachments unless verified. For all suspicious emails, please use the [Phish Alert Report Button](#) to submit for review. **Thank you!**

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 **Ben Allen Sheriff (2).pdf**
677K

Ben Allen <allenbenjamins1@gmail.com>
To: Elizabeth Boone <eboone@leecountync.gov>

Mon, Oct 14, 2024 at 2:03 PM

Dear Ms. Boone,

I am writing to inquire about the status of my open records request submitted on September 27, 2024. As of today, October 14, 2024, I have not received a response or acknowledgment of my submission.

North Carolina's Public Records Law requires that public agencies respond to requests "as promptly as possible." Given that more than two weeks have passed since my submission, I am concerned about the delay in processing my request.

To refresh your memory, my request encompassed:

1. Basic call logs from October 18, 2019, to October 20, 2019
2. Policies and procedures related to investigative and arrest procedures
3. Payroll records for Lee County Sheriff's Office employees from October 18, 2019, to October 20, 2019

I have also included the request with this message to assist in your review if necessary.

I kindly request that you review my submission at your earliest convenience. If you need additional time to process the request or if any clarifications are needed, please inform me of when I can expect a response or what additional information you require.

Thank you for your prompt attention to this matter. I look forward to hearing from you soon.

Sincerely, Benjamin Allen

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**Public Records Request - Allen, Benjamin Sep 27, 2024.pdf**

963K

Ben Allen <allenbenjamins1@gmail.com>
To: Elizabeth Boone <eboone@leecountync.gov>

Thu, Oct 17, 2024 at 3:45 AM

Dear Ms. Boone,

Have you given up on this request?

-Ben

[Quoted text hidden]

Ben Allen <allenbenjamins1@gmail.com>
To: Elizabeth Boone <eboone@leecountync.gov>

Thu, Nov 21, 2024 at 5:24 AM

Dear Ms. Boone,

I hope this message finds you well. I want to express my sincere gratitude for all your assistance thus far; your efforts are truly appreciated.

I wanted to revisit my previous public records request to ensure that I've communicated my needs clearly. It's possible that I didn't articulate my request effectively, and I apologize for any confusion this may have caused.

To clarify, I am seeking information similar to what is publicly available on the Lee County Sheriff's Office website. For example:

"On 02/27/2022 at around 1:35 am, the Lee County Sheriff's Office received a call for service to a white in color Kia in the woods off of Hwy US #1 near Colon Rd."

I understand that certain records may be exempt from disclosure under NCGS 132-1.4 and NCGS 160A-168. I respect those limitations even though I do not think they apply here. My intention is not to create any undue stress or inconvenience. I can imagine the Sheriff's Office's response to this request was not very forthcoming.

It is a secondary source of verification, so this will be my last request. I wanted to be as thorough as possible without realizing they would ask to deny the request.

Thank you again for your time and consideration. Please let me know if I can provide any further clarification or if this concludes the request with no further documentation forthcoming.

Warm regards,
Ben Allen

On Fri, Sep 27, 2024 at 3:05 PM Elizabeth Boone <eboone@leecountync.gov> wrote:

[Quoted text hidden]

Elizabeth Boone <eboone@leecountync.gov>
To: Ben Allen <allenbenjamins1@gmail.com>

Thu, Nov 21, 2024 at 9:04 AM

Mr. Allen,

Respectfully, I responded to your initial public records request and your second public records request on September 27, 2024 and October 21, 2024.

Sincerely,

Elizabeth Boone

Elizabeth Myrick Boone



Deputy County Attorney

Lee County Government

408 Summit Drive | Sanford, NC 27330

919-718-4605 – Ext. 5455

www.leecountync.gov

From: Ben Allen <allenbenjamins1@gmail.com>

Sent: Thursday, November 21, 2024 6:24 AM

To: Elizabeth Boone <eboone@leecountync.gov>

Subject: Re: Public Records Request

CAUTION: External Email. Do not click links or open attachments unless verified. For all suspicious emails, please use the Phish Alert Report Button to submit for review. **Thank you!**

Dear Ms. Boone,

[Quoted text hidden]

Ben Allen

[Quoted text hidden]

[Quoted text hidden]

Ben Allen <allenbenjamins1@gmail.com>
To: Elizabeth Boone <eboone@leecountync.gov>

Thu, Nov 21, 2024 at 9:24 AM

Ms. Boone

You absolutely did, and I appreciate your response.

I just wanted to confirm that it is the official position of Lee County that information such as:

"On 02/27/2022 at around 1:35 am, the Lee County Sheriff's Office received a call for service to a white Kia in the woods off Hwy US #1 near Colon Rd."

is categorized as you listed in your response.

As per your reply:

- **Items 1, 2, and 3** are criminal investigation records under NCGS 132-1.4 and are not public records. However, I should have a copy or access to all discovery provided to my attorney in the pending criminal matter related to this request.
- **Item 4** requests a Policing Technique Policy, and the Sheriff's Department does not have a policy with this name.
- **Item 5** requests a timesheet, which is a personnel record and is not a public record under NCGS 160A-168.

If you state that the information is not releasable, then that is the answer. I was just looking to confirm that this was your official response.

Warm Regards,

Ben Allen

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Ben Allen <allenbenjamins1@gmail.com>
To: Elizabeth Boone <eboone@leecountync.gov>

Fri, Dec 6, 2024 at 3:23 AM

Ms. Boone,

I will start a new request, but I wanted to ensure that I wrapped up this one before doing so.

To confirm, are there no additional departmental policies related to the Code of Conduct? Ethical guidelines for officers to handle arrests, report relationships, etc..

For example, we can create a hypothetical:

If a senior officer (e.g., a Captain - we can call him Stephan Freamin) begins a relationship with a junior officer (e.g., a Deputy / Detective we can call her Vegan Mosser), they must:

1. Disclose the relationship if required by policy.
2. Avoid any supervisory or evaluative authority over the junior officer.
3. Refrain from allowing the relationship to impact professional duties or team dynamics.

It would probably lead to more family problems, but other ethical issues apply. Failure to comply with these principles can result in personal and professional consequences for both individuals and their departments.

Breach of Professional Ethics (Imagine if it was the person in charge of Professional Standards / Internal Affairs - Speaking of affairs...)

- **Violation of Departmental Policies:** If the relationship violates workplace rules, especially policies requiring disclosure or prohibiting fraternization, the senior officer's conduct reflects poor adherence to professional standards. (Unless they are in charge of department policy while the civilian leadership looks the other way)
- **Abuse of Power:** A secret relationship may imply an abuse of authority or poor judgment, which undermines the integrity expected of a senior officer.
- **Conflict of Interest:** Undisclosed relationships can create real or perceived conflicts of interest, particularly in decisions involving the junior officer, such as promotions or assignments. (Like if someone is related to you and you didn't disclose it during the trial or investigation)

2. Personal Integrity

- **Marital Infidelity:** If the senior officer is married, engaging in an undisclosed relationship with another person could indicate dishonesty in their personal commitments. This might reflect poorly on their character, particularly in professions where trustworthiness is paramount. (Then you might perjure yourself by saying you didn't know someone dating a family member and the other that is a son of a colleague)
- **Deception:** Keeping the relationship hidden from both the department and their spouse could suggest a willingness to engage in deception to avoid accountability. (Definitely a concern but what if the county knows and tacitly approves of all this poor behavior?)

3. Leadership Responsibilities

- **Setting an Example:** Senior officers are held to higher moral and ethical standards because they are expected to lead by example. A secret relationship, particularly one involving infidelity, undermines their ability to command respect and authority.
- **Impact on Team Morale:** If discovered, the relationship could erode trust within the team, foster resentment, and harm the department's internal culture.

4. Public Perception

- **Damage to Reputation:** The public holds law enforcement officers to high standards of conduct. A scandal involving an undisclosed relationship, especially one tainted by marital infidelity, could damage both the officer's reputation and the department's credibility.
- **Accountability:** Police officers are expected to uphold the law and maintain ethical standards in their personal lives as well as their professional roles. (What if no one is holding the Sheriff's Office accountable?)

5. Indicators of Poor Moral Character

- **Lack of Transparency:** Failing to disclose the relationship, when required by policy, suggests a disregard for rules and accountability. (Just like an almost 40% arrest rate without a warrant - FOR A DETECTIVE)
- **Dishonesty:** Maintaining a secret relationship, especially while married, indicates a pattern of dishonest behavior. (You don't say...)
- **Self-Interest Over Duty:** Pursuing a relationship that could jeopardize professional responsibilities reflects poorly on an officer's judgment and priorities.

Counter Arguments

- **Private Conduct vs. Professional Duties:** Some might argue that private relationships, even if unethical, do not necessarily impact professional performance. (What if they fail to investigate a reported crime because of this or other similar relationships.)
- **Gray Areas:** If the relationship did not directly affect workplace decisions or involve coercion, some may view the situation less harshly. (Unless the father of the girlfriend is friends with the father of the accuser while also trying to appease the wife whose family member is always trying to make a dishonest dollar to the point that the city worker she was dating had to evict her from his home. This is a pretty entwined hypothetical. I am sure nothing like that is going on. That would mean the county would be responsible for looking the other way.)

If there are no other policies to be provided then I will move on to submitting another request through the website for additional data.

Warm Regards,
Benjamin Allen

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